

RE: Application for reinstatement

From: Lauren Griffin

Lauren.Griffin2@health.qld.gov.au

To: Cory Shepherd coryshepherd1@hotmail.com

Sent: Tuesday 28 January 2025 at 17:42

Hi Cory

Without prejudice

Further to previous emails, and further to correspondence with your former lawyer, I just wanted to crystalise for you what the Health Service's final offer was. Noting that this offer was initially made in November and the time for acceptance of this offer has long passed, in consideration that it is similar to any offer we will be instructed to make during conference, I would like to again make the Health Service's full and final offer.

- You will be reinstated to your former substantive position of Administrative Officer, Switchboard Services, Logan Hospital, with an effective date of 20 September 2024 (the date of separation);
- The Health Service will meet the cost of lost earnings between 20 September 2024 and 13 December 2024;
- You will be placed on leave without pay from 13 December 2024 until you return to the workplace;
- Any leave balances paid out on separation will need to be reconciled, meaning that the balances will be re-credited but this would have the effect of creating an overpayment that you would need to pay back.
- You will discontinue your application for reinstatement;
- The Health Service does not concede any of the other claimed underpayments, but confirms you are not restrained from continuing to pursue them outside the context of this matter;
- In consideration of the protracted nature of this matter, which cannot be attributed to the Health Service, we remain willing to pay \$5,000 towards your legal expenses, however as previously put to your former lawyer, that amount is fixed.

- The Health Service reserves its rights to deal with any outstanding matters of your absenteeism, behaviour, conduct and communication with the Health Service. For the purposes of absolute clarity, the Health Service is not able to entertain a settlement on the basis that it cannot manage you by way of reasonable management action, and will not 'wipe the slate clean' in relation to your past conduct and behaviour. We say that our offer essentially restores your employment status to what it was immediately before the dismissal; and
- The above agreement to be entered into within a deed containing mutual release from the reinstatement application and mutual confidentiality

In your consideration of this offer, we remind you that the primary remedy of the QIRC in an unfair dismissal proceeding is reinstatement, and that in accordance with s322(1) of the IR Act, compensation can be ordered *only* if the Commission considers that reinstatement or re-employment are impractical. We also remind you that we have been consistently offering to reinstate you since November.

Please advise by the end of this week if the above offer is one for acceptance. Please note that if it is not accepted, the favourable terms including payment for legal expenses may not be offered again within the QIRC.

I also remind you that if you are no longer represented by Stone Legal Group, you will need to formally advise us and the QIRC of this by submitting a [Form 35 or Form 36](#).

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Monday, January 20, 2025 1:02 PM

To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Subject: Re: Application for reinstatement

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safe.**

Dear Lauren,

Thank you for the update. I appreciate you including me in the request. I will promptly forward any changes regarding representation.

Kind regards,

Cory

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From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Sent: Monday, January 20, 2025 12:49 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Subject: RE: Application for reinstatement

Hi Cory

Without prejudice

Thank you for your email. As I have previously reiterated to your lawyer, the Health Service is not willing to agree to reinstatement with a release from the management of historical issues. Our position in this regard has been clear since *November 2024*.

As I put to your lawyer over a month ago on 13 December 2024, this aspect of the matter seems to be the source of an impasse, so accordingly the parties are unlikely to be able to resolve the issue without the assistance of the QIRC. As you will have now seen, we have written to the

QIRC to request that the matter is brought on for conciliation conference. For noting, you will likely need to notify the QIRC and Health Service of a change in legal representative by filing a [Form 35 or 36 and possibly 37](#).

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
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From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Monday, January 20, 2025 12:18 PM

To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Subject: Re: Application for reinstatement

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Dear Lauren,

Without prejudice

While I appreciate the offer made on December 13th, I must reiterate that the proposed deed's language regarding past disagreements hinders a true resolution.

To move forward constructively and without further detriment, I propose the following:

Due to the untimely departure of Zach the representative from Stone Group Lawyers I will accept payment from my original return-to-work date up to the 16th of December 2024 as a condition of settlement and my immediate return to work.

This acceptance hinges on amending the deed to focus on our future working relationship rather than revisiting past disputes. This compromise allows for a prompt resolution and facilitates my return to contributing positively to the workplace.

Cory

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From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Sent: Monday, January 20, 2025 11:39 am

To: Cory Shepherd <coryshepherd1@hotmail.com>;

MSHR.EmploymentRelations

<MSHR.EmploymentRelations@health.qld.gov.au>

Subject: RE: Application for reinstatement

Hi Cory

Without prejudice

At this stage, the Health Service's offer made over a month ago directly to your legal representative after several protracted discussions is the final offer the Health Service is willing to make. We say that offer was more than reasonable, and as discussed with your previous lawyer, would have restored you to the status you were in before the dismissal took effect. I take from your email below that the offer is not one for acceptance.

Given the unreasonable delay in the face of the Health Service's genuine efforts to resolve the matter, the Health Service is not willing to offer repayment of any wages from 13 December 2024 onwards as part of any negotiation.

We will ask for the matter to be listed for conciliation conference. We will copy you into that correspondence.

Regards

Lauren

Lauren Griffin

Director

Employment Relations

Metro South Health

Building 23, 2404 Logan Road, Eight Mile Plains 4113

[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Monday, January 20, 2025 11:28 AM

To: MSHR.EmploymentRelations

<MSHR.EmploymentRelations@health.qld.gov.au>

Cc: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Subject: Re: Application for reinstatement

**This email originated from outside Queensland Health.
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safe.**

Good morning,

I am available for a call at 12:00PM today to discuss a potential resolution to this matter. Please let me know if this time is suitable for you.

As you might be aware, my previous legal representative, Zach, is no longer with his firm. I am currently exploring new representation but intend to proceed independently if necessary.

My objective is to achieve a mutually acceptable resolution, and to that end, I am open to discussing a potential reinstatement. While I maintain that my dismissal, attributed to a lack of communication, was not justified, given that Queensland Health was apprised of my condition and need for a leave of absence, I believe a constructive path forward is possible.

It is also pertinent to note that the Crime and Corruption Commission has directed Ethical Standards to conduct a review of workplace conduct concerning Chloe Taylor, Tammy Reece, and Ellen Stibbard, and I have been identified as a protected employee in this investigation.

To facilitate a successful return to work, I believe it is essential to establish clear communication protocols going forward. Therefore, prior to finalizing any agreement, I would like to discuss the communication channels

between myself and the individuals who have been involved in this matter.

In pursuit of a comprehensive resolution, I propose the following:

- Payment of my standard salary, retroactive to the date I would have returned to work.
- Reimbursement for any wages that were missed or underpaid during my absence.
- Reimbursement for legal fees incurred to date, currently totaling under \$7,000. I am prepared to provide the corresponding invoice for your review.

Moreover, moving forward in a positive direction to revisit past disagreements or to reserve the right to 'deal' with those disagreements is not constructive and I would not agree upon the rights to revisit them. I agree that should such communication issues fall outside of agreements then I should be addressed the same or equal to that of other Queensland Health employees.

Please advise if you are available for a call today or at an alternative time to discuss this matter further.

Sincerely,
Cory

From: MSHR.EmploymentRelations
<MSHR.EmploymentRelations@health.qld.gov.au>
Sent: Monday, January 20, 2025 10:07 am
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Subject: Application for reinstatement

Good morning Cory

I have tried to reach you by phone this morning in relation to your application for reinstatement. Can you please confirm if you are still being represented by Stone Group Legal in that proceeding?

Many thanks

Lauren Griffin

Director | Employment Relations

Metro South Health

Building 23, 2404 Logan Road Eight Mile Plains

t. [07 2100 9777](tel:0721009777)

e. Lauren.Griffin2@health.qld.gov.au |

MSHR.EmploymentRelations@health.qld.gov.au



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